

HCJDA-38

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No. 20539 of 2025

Zaffar Hussain Khan

Versus

Federal Government and 03 others

J U D G M E N T

Date of hearing	02.07.2025
Petitioner by:	Mr. Zubair Afzal Rana, learned Advocate.
Respondents No. 1 & 2 by:	Mr. Muhammad Waseem, learned Assistant Attorney General for Pakistan.
Respondent No. 3 by:	Mr. Salman Asif Warraich, learned Assistant Advocate General, Punjab along with Muhammad Iltaf, Deputy Director (State) Agriculture Department.
Respondent No. 4 by:	Mr. Faisal Hayat, learned Senior Law Officer.
Amicus Curiae	Barrister Khurram Raza and Abdullah Jehangir, learned Advocates.

Sultan Tanvir Ahmad, J: This constitution petition is directed against alleged failure by the respondents to take appropriate initiatives to protect the interest of the farmers of the Province for wheat-crop in the year 2024-25. The petitioner has also requested for a direction to the respondents to take measures to implement the various constitutional provisions and also to fix appropriate price of wheat in view of the average cost of its production.

2. Mr. Zubair Afzal Rana, learned counsel for the petitioner has stated that the agriculture department has given indicative price of wheat as Rs.4108/- per 40 kilograms for the crop in 2024-25, however, the respondents have not fixed any price of wheat, resulting into setbacks to the farmers of the Province. In addition to explaining anguish and losses to the farmers, Mr. Zubair Afzal Rana has stated that due to inaction of the functionaries in the previous years, the concerned ministry has already issued a warning about 10% less production of wheat and if the same continues then there is serious apprehension that farmers in the Country shall lose enthusiasm in cultivating wheat in the next years, which will have serious consequences.

3. Mr. Muhammad Waseem, learned Assistant Attorney General for Pakistan has submitted that post 18th amendment in the Constitution of the Islamic Republic of Pakistan-1973 (the '**Constitution**') the Provinces retain full authority to regulate the wheat price. He relied on the report filed by the concerned respondent and contended that previous mechanism of fixing minimum support price (the '**support price**') has been discontinued in line with the international best practice and this has been done, besides other reason, to ensure fair returns to the farmers, instead of continuing with artificial price control system. Mr. Salman Asif Warraich, learned Assistant Advocate General-Punjab, has relied upon some historical components. He has invited attention of the Court towards (i) *support price* notifications for wheat, issued in the previous years, to maintain prices and (ii) the notifications for public procurement to raise buffer stock in the Province. He has supported the stance of the learned Assistant Attorney General for Pakistan that these measures are now insufficient and the same are not in accordance with the international best practices of modern

food security system in the world, therefore, practice of fixing the *support price* has been abandoned for the year 2024-25. Learned Assistant Advocate General, Punjab has referred to different measures including finance support program of the Chief Minister of the Province as well as storage facility being provided to the growers of wheat.

4. Mr. Abdullah Jehangir, learned Advocate (from the office of learned *amicus curiae*) has assisted as to various provisions of the Punjab Price Control of Essential Commodities Act-2024 (the '*Act of 2024*') and the judgments rendered on the subject by the Courts of the Country. He has highlighted the constitutional authority and responsibility of this Court to ensure compliance of Articles 4, 9 and 38 of the *Constitution*, as previously noted by the Honorable Supreme Court of Pakistan.¹ He stated that there is complete failure by the respondents to ensure fairness and control pricing framework for the wheat, which is violation of various provisions of the *Constitution*, having adverse impact on the livelihood of wheat growers and the farmers.

5. Heard.

6. The *Act of 2024* is promulgated to have price control of essential commodities in Punjab with the clear object, as also reflected from its preamble, *to make provisions for providing effective mechanism for fixing of prices of essential commodities; to control artificial price hike and profiteering of essential commodities in Punjab; and for the matter ancillary thereto*. Section 4(1) of the *Act of 2024* empowers the Price Control Council (the '*Council*') directly or through Provincial Controller General or authorized officer to make orders for regulating prices.

¹Regarding enormous increase in the price of Flour: Constitutional Petition No. 52 of 2013, decided on 2nd December, 2013 (**2014 SCMR 329**).

production sale of the essential commodities and for the price to be charged or paid for it at any stage of transaction therein. Under section 6 of the *Act of 2024* the *Council* is further authorized to give directions for fixing the specific maximum prices of the essential commodities. The functionaries can also review the prices so fixed or extend the period if the circumstances so demand.

7. Article 38 of the *Constitution* requires reduction of disparity in income and earnings of individuals in various classes in order to promote well-being of the people. Article 38(a) of the *Constitution* mandates, *inter-alia*, prevention of concentration of wealth. It prohibits the accumulation of wealth and distribution in the hands of a few to the detriment of general interest. At the same time, clause 'd' of the said Article demands providing basic necessities of life to all citizens, which specifically includes food supply. Wheat is not just one of the major crops of the Country but crucial source of basic nutrition intake, needs and considered as a staple food.

8. The balance required to be maintained, by the *Constitution*, is only possible by taking strict measures including (i) actions to ensure that the farmers do not lose steam due to consistent shortfalls over the years. This is highly important also due to the reason that it has been admitted before me that on some parts / lands in the Province wheat is the only crop which is being cultivated; (ii) to keep a strong check on profiteers, hoarders and those having such resources and normally looking for opportunities to take undue advantage of these situations; and (iii) to ensure that wheat / *ata*, being essential part of basic necessities, is provided to general public keeping in view their available means. The Honorable Supreme Court

of Pakistan in C.P. No. 52 of 2013 (supra) has already observed that this matter requires stringent steps:-

“...It may be noted that the Provincial Governments are duty-bound to control all the prices of foodstuffs without any discrimination. We understand that presently there is a loose check on the profiteers and hoarders and the same is only possible by adopting a mechanism by the respective Provincial Governments by taking stringent steps otherwise it would be beyond the capacity of an ordinary labourer to provide bread to his family including children and old persons.”

In *Ikram Bari* case², while interpreting the constitutional provisions under discussion, it has been observed that it is obligation of the functionaries to ensure elimination of all kinds of exploitation and under Article 38 the State has to secure the well-being of the people by ensuring equitable adjustments of rights and taking other necessary actions. A relevant extract is as under:-

*“...The principle of policy contained in Article 38 of the Constitution also provide, inter alia, that the State shall secure the well being of the people by raising their standards of living and by ensuring equitable adjustment of rights between employers and employees and provide for all citizens, within the available resources of the country, facilities for work and adequate livelihood and **reduce disparity in income and earnings of individuals**. Similarly, Article 3 of the Constitution makes it obligatory upon the State to ensure the **elimination of all forms of exploitation** and the gradual fulfillment of the fundamental principle, from each according to his ability, to each according to his work....”*

(Emphasis supplied)

²*Ikram Bari and 524 others vs. National Bank of Pakistan through President and another (2005 SCMR 100).*

9. This Court is fully cognizant that the *Constitution* of the Country protects principle of trichotomy of powers and the Courts cannot assume role of law or policy makers as already observed by the Supreme Court of Pakistan.³ The policy decision in the absence of violation of the Constitutional provisions or patent illegality cannot be annulled but the Court may invalidate laws, acts and governmental actions that are incompatible with a higher authority, or an executive decision for being unlawful which maintains check and balance⁴.

10. Article 38 of the *Constitution* falls in Chapter-1, part-II, which is regarding “Principles of Policy”, making it responsibility of all the organs and authorities to act in accordance with those principles in so far as they relate to their functions. It cannot be expected from any authority or functionary to frame a policy repugnant to the principles expressed by the *Constitution*.

11. Article 3 of the *Constitution* makes it obligatory for the State to ensure elimination of all types of exploitation. The objective resolution forms part of the substantive provisions of the *Constitution* through ‘Article 2-A’ inserted by the constitution-makers prior to the chapter of fundamental rights (Chapter-1 of part-II) given in the *Constitution*. This provides that fundamental rights including equality of status, of opportunity and before law, social, economic and political justice, and freedom of thought, expression, belief, faith worship and association, subject to law and public morality. It is obligation of the entire organs of the State to take steps for elimination of

³Executive District Officer (Revenue), District Khushab at Jauharabad and others vs. Ijaz Hussain and another (**2011 SCMR 1864**).

⁴Senior General Manager, Pakistan Railways and others vs. Muhammad Pervaiz (**2024 SCMR 581**).

exploitation in society, in which ever form they may exist. The objective resolution, besides other rights, guarantees social and economic justice. It requires from all the organs of the State including the Courts to ensure dispensation as per its commands. No law, rule, regulation or policy can be interpreted resulting or manifesting into any different consequences or meanings. Otherwise, such law or policy cannot be left to hold the field. Article 8(1) of the *Constitution* provides that any law, or any custom or usage having the force of law, in so far as it is inconsistent with the rights conferred by this Chapter, shall, to the extent of such inconsistency, be void.

12. A learned Division Bench of the Sindh High Court while interpreting various provisions has concluded that it is the duty of the legislature to enact laws and enforce them in the manners which promotes the rights enshrined in the *Constitution*⁵. A relevant extract of the judgment reads as under:-

“...At this juncture, we may state that in our opinion, the right to life guaranteed by the Constitution includes the right to live in a clean and healthy environment. It is, therefore, the duty of the legislature to enact laws and of the Government to enforce them in a manner which promotes the achievement of high intellectual and spiritual goals and happiness in life by the citizens...”

(Underlining is added)

13. The learned counsel for the petitioner has submitted that cost incurred on the production of wheat by the farmers is much higher than the price they are fetching from its sale in the market. The petitioner and the learned *amicus curiae* remained firm in their stance that

⁵Shehri and others vs. Province of Sindh and others (2001 YLR 1139).

functionaries, while shifting their policy, stayed unable to discharge their duties as per the very object of the *Act of 2024* and in the light of the above discussed provisions of the *Constitution*. The petitioner has given different examples and indicatives of the cost incurred by the farmers to establish his point of view.

14. Director General Crop Reporting Service Agriculture Department-Punjab, on the direction of this Court, has also filed a report. A part of this report is based on evaluation conducted by three reputable organizations i.e. Ayyub Agriculture Research Institute-Faisalabad, University of Agriculture-Faisalabad and Punjab Economic Research Institute, Lahore. The learned law officers kept arguing and stood in support of the functionaries but there is hardly any denial to the stance adopted by the farmers that they have been selling wheat in the market for about Rs.2000/- per 40 kilograms in this year. Calculation relied by the petitioner-side shows that indicative price is more than Rs.4000/- per 40 kilograms. Although it is stated that this indicative price is not approved by the concerned corners, however, the price of wheat duly approved for the year 2023-24 is also made part of the report. The indicative price for the said year is Rs.3533/- per 40 kilograms. This "Weighted Average Cost of Production" shows that average yield (based on previous 03 years) is 31.8 X 40 kilograms per *acre*. The cost, including rent of the land, in the year 2023-24 was Rs.2826/- per 40 kilograms. Increase of the prices of inputs in recent year(s) is obvious and if kept in view the average cost of production for this year has to be certainly higher. This leads to irresistible conclusion regarding setback to the farmers. The report filed by Additional Secretary (Commodities), on behalf of respondent No. 3, states that the policy / package is issued to ensure farmers profitability. Perhaps that can be

the intention of the policy makers and I have no reason to doubt this intention or the aim. However, no one from the respondent-side could demonstrate with even lowest degree of certainty if the respondents remained able to achieve this endeavor, effectively. It appears that the concerned were not well advised as to the true spirit of provisions of Articles 2-A, 3, 4, 8(1) read with Article 9 as well as Article 38 of the *Constitution*. It is also apparent that the position remained quite unsustainable, specifically for the farmers cultivating on low scale or with small land-holding and low-income farmers.

15. Throughout the arguments the learned counsel for the petitioner has not suggested that the policies should not be made integrating the international best practices, however, he states that the functionaries brought sudden shift, contrary to their commitments, just at time of harvesting and sale of wheat by farmers, ignoring cost of production and without any corresponding control of prices of the inputs. The respondents have repeatedly admitted that wheat forms staple food of the people of Pakistan. Therefore, the present petition is **disposed of** with the direction to respondents No. 3 and 4 to take necessary measures to ensure implementation of the *Act of 2024*, its object and in the light of the above discussed provisions of the *Constitution*. No order as to cost.

(Sultan Tanvir Ahmad)
Judge

Announced on 25.07.2025.

Judge

RanaZahid Bashir